



POLICE DEPARTMENT

July 30, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202401375 (Incident Date: February 3, 2024) regarding Police Officer Kevin Donohue, Tax No. 953824 (PODS Case No. C-034696)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Kevin Donohue and has determined that the sole allegation does not warrant disciplinary action.

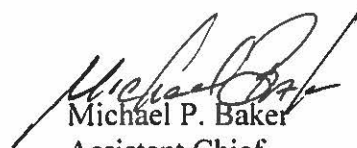
After reviewing the facts and circumstances of this matter the Police Commissioner has determined that the level of force used by Police Officer Donohue was reasonable under the circumstances. The officers in this case apprehended a motorist who moments earlier failed to yield to oncoming traffic when making a left turn. Instead of pulling over, the motorist continued driving to his residence until he chose to park in his driveway. After the officers approached the vehicle, the individual continued disobeying the officer's orders to produce his driver's license and vehicle information. Finally, after refusing to exit the vehicle upon the order of the supervisor on scene, he was forcibly removed from the vehicle. His non-compliance and efforts to resist being handcuffed continued while he was on the ground. At some point, Police Officer Donohue delivered one knee strike to the individual's head and another officer utilized his CEW in drive-stun mode. The individual did not sustain injuries as a result of Police Officer Donohue's knee strike. Additionally, the officers were also aware that the individual had a past interaction with police where he assaulted an officer after failing to obey an order to produce documentation and an interaction with a pedestrian related to a vehicular assault. CCRB acknowledged that the individual resisted arrest and acted evasively when he refused to pull over and later refused to exit his vehicle. They further acknowledge the officer's awareness of the individual's prior history with police as it was stated on body worn camera video during the initial approach of the vehicle.

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Therefore, based on the totality of the circumstances and careful review of body worn camera video, Police Officer Donohue will not receive any disciplinary action for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker". The signature is stylized with a large, sweeping initial "M" and a long, horizontal stroke extending to the right.

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office